

regular in giving his notice, and yet it might appear that the plaintiff was taking a step to get on with the suit, and that he was entitled to the Order to amend, which he had taken. The Court would not, therefore, dismiss the Bill, but would put the plaintiff on such terms as the case might warrant. In England the Order to amend in such a case being only obtainable on motion, under the Order of 1847, it being once obtained on such motion, after notice, it is much more reasonable to hold it to be an answer to the motion to dismiss; for the defendant must have become aware that the Court thought it a proper case for permitting the plaintiff to proceed by amendment. If the Order to amend is out, before the notice to dismiss is given, the case comes of course under the above 65th Order. The English decisions as to the Order to amend, being an answer to the motion to dismiss, are, *Lester vs. Archdale*, 9 Beaven, 156; *Findlay vs. Lawrence*, 11 Jurist, 705; *Raistrick vs. Elsworth*, 12 Jurist, 281.

English
decisions.

Discretion of
the Court when
there is delay.

It will be readily seen, that, if the Court were bound by any positive rules to refuse the motion to dismiss, on the ground of any proceedings taken on the part of the plaintiff, notwithstanding any delay he may have already been guilty of, injustice would be done. After long delay the plaintiff might take a proceeding merely to stop the motion, and again follow the same course when another motion was likely to be made. The Court will therefore put him on terms to speed the cause; and all doubt is removed on this head by the 68th New Order, which is as follows:—

1850.
LXVIII.
Motion to dis-
miss, when de-
lay takes place.

Discretionary
Order.

In every other case, where the plaintiff is unreasonably delaying the suit, any defendant may move to dismiss the bill for want of prosecution, after the expiration of four weeks from the time of his filing his answer, if the plaintiff, having obtained an order to enlarge the time, does not obtain and serve an order for leave to amend the bill, or does not file the replication, or set down the case to be heard on bill and answer, within that period; and upon the hearing of such motion, the Court may make such order for the dismissal of the bill, or for expediting the suit, and as

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